

SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE, AGENCIES, SYSTEMS, IDENTIFIERS, AND EVENTS — NOT A REAL FILING OR CYBERSECURITY GUIDE COUNTERFACTUAL APPELLATE BRANCH — NEVER FILED OR ENTERED ON THE ACTUAL DOCKET — ISOLATED DOCKET: SYN-CA4-26-CV-4106-CF-NEVER-OCCURRED

Never-Filed Petition for Panel and En Banc Rehearing

Court: United States Court of Appeals for the Fourth Circuit **Case:** Open Grid Archive v. United States Department of Energy **Isolated docket:** SYN-CA4-26-CV-4106-CF-NEVER-OCCURRED **Filed:** June 12, 2026

Open Grid petitions for panel rehearing and rehearing en banc of the counterfactual opinion affirming all corrected rulings. The petition is filed fourteen days after the isolated judgment and is timely within this training chronology. It creates no rehearing request or deadline on the actual appeal.

Panel rehearing is warranted because the opinion, despite careful limiting language, treats the corrected worksheet as conclusive at several disputed points. En banc attention is warranted to clarify how functional categories, segregability proof, and judicial-record access interact when a record contains both operational relationships and ordinary administration.

Open Grid does not ask the Court to revisit search adequacy or law-enforcement purpose. It does not request disclosure of an authentic trigger, assignment, channel, safeguard, or guideline. It asks the Court to require a closer match between the retained text and the function described.

The petition also challenges the conclusion that the assumed sealing findings are sufficiently passage-specific. A finite, revocable access system is valuable but cannot cure a finding stated at the level of an entire controlled counterpart.

Standards for Rehearing

Panel rehearing addresses a material point of law or fact the panel may have overlooked or misapprehended. It is not an opportunity to repeat every argument. Open Grid identifies discrete places where the opinion moved from a sound general method to an insufficiently tested application.

Rehearing en banc is reserved for maintaining uniformity or addressing a question of exceptional importance. This hypothetical implicates the relationship among *Grey*, *Rein*, *Zaid*, *Electronic Privacy Information Center*, and *Company Doe*. The standards are complementary, but their application to paired public and controlled cyber-response exhibits warrants a clear boundary.

The branch's counterfactual nature does not lower those standards. Within the exercise, the opinion is treated as a published panel decision and the petition must identify an issue that matters beyond dissatisfaction with the result. Outside the branch, neither the opinion nor this petition has precedential force.

Open Grid seeks a narrowed holding or remand limited to unsupported segments and sealing findings. It does not ask for a wholesale rejection of functional proof, an order exposing protected content, or merger with another branch path.

The 7(E) Application Is Broader Than Its Rule

The opinion correctly reads *Grey* to distinguish techniques and procedures from guidelines. It also says administrative material is not protected by proximity. The application nevertheless accepts DOE's positional explanations for the fully withheld trees without identifying how each proposed administrative fragment would reveal implementation.

A title block, approval statement, revision notation, or ownership line can remain meaningful after a predicate and ordered branch are removed. Position becomes protected only if the agency explains the relation a reader could infer. Describing the source as continuous does not necessarily provide that explanation.

The corrected worksheet is detailed, but detail of format is not proof of substance. The Court should identify which entries demonstrate that location exposes trigger order and which merely conclude that it does. A guideline entry should likewise be tied to the stated circumvention inference.

Open Grid requests rehearing to narrow affirmance to the genuine implementation relationships the opinion describes. Such a correction would preserve 7(E) protection and avoid suggesting that administrative fragments in a fully withheld operational record receive less rigorous segregation review than the same fragments in a partial record.

Limited 7(F) Categories Still Require Individual Fit

The corrected premise supplies four coherent functional groups and a distinct disclosure-to-danger theory for each. Open Grid agrees that 7(F) does not require naming the threatened person and that the agency may organize proof categorically after examining individual documents.

The problem arises when the panel says all correlations “hold” without explaining its treatment of disputed headings and general coordination. A duty-related caption may identify a subject without revealing an assignment. A contact-category heading may say nothing about a channel. A general reference to safety review may not expose the safeguard.

The opinion should demonstrate why each contested segment carries the function rather than rely on the worksheet’s designation. It should also identify the independent ground for dual-marked segments. Those steps would show that the category emerged from the record instead of determining the result by label.

Rehearing can correct the analysis without demanding a name or revealing a value. The Court may sustain genuinely function-bearing fields and direct further treatment only of entries whose causal fit remains unexplained. That limited remedy respects reasonable-expectation review while preventing 7(F) from expanding through vocabulary alone.

Vaughn Specificity Requires Judicial Explanation

The panel emphasizes the components of the corrected submission: record, page, segment, function, exemption, overlap, and harm. Those are the right components. Open Grid's concern is that the opinion approves the architecture without showing why the descriptions are accurate for the disputed passages.

Meaningful de novo review involves more than confirming that every field is populated. The court should examine whether the functional description matches visible context, whether the declarant has a foundation for the inference, and whether the harm explanation is particular rather than repeated.

The inert controlled labels provide a useful visual aid but cannot establish that an authentic segment has the assigned function. Nor can in-camera access substitute for a public explanation adequate to permit adversarial challenge. The public opinion should state the safe reasoning that connects category to segment.

Open Grid asks the panel to supplement or narrow its analysis. Without that step, later readers within the exercise may understand the opinion to bless any technically complete index. *Rein* and *Zaid* require substantive specificity, not merely a well-organized chart.

The Segregability Holding Needs Closer Review

The seventeen-passage release is meaningful. It shows that renewed examination separated ownership, headings, revision facts, recordkeeping, general coordination, approval, and closure. It also shows that the earlier conclusion was overinclusive in at least eleven places.

The corrected worksheet addresses residual segments, including proposed fragments within wholly withheld records. The opinion accepts those explanations without discussing the most plausible administrative candidates. That omission matters because segregation is an affirmative duty separate from whether the operational relation is exempt.

Open Grid does not argue that every fragment must be released. A word group whose position exposes a protected relation can remain withheld, and meaningless remnants need not be produced. But the court should explain why a title, effective date, owner, or neutral revision statement falls into either category when it is withheld.

Rehearing should require that comparison. If the existing worksheet supplies the answer, the panel can state it and adhere to affirmance. If it does not, a narrowly confined remand can address those segments without disturbing sustained 7(E) or limited 7(F) protection.

The Sealing Findings Remain Too Aggregate

The corrected order is substantially narrower than the sealing history held outside the premise. It provides public counterparts, identifies access interests, considers alternatives, sets a finite period, and uses disclosure-specific verified sessions. Open Grid supports those features.

But *Company Doe* requires findings supporting the material actually closed. The assumed order identifies each controlled brief and the field categories within it. It does not necessarily explain why every controlled passage, as opposed to the genuine values inside it, must remain sealed.

Line redaction and a public counterpart may solve that problem if the controlled copy contains nothing beyond the protected value and necessary relational context. The Court should say so passage by passage or identify a representative analysis that genuinely covers a coherent group. A document-level conclusion is not automatically enough.

Technical safeguards cannot supply the missing substantive reason. Public-only projection, deferred verification, limited grants, and revocation prevent unauthorized access after closure is justified. Rehearing should clarify that those controls are evidence of narrow implementation, not a replacement for compelling interest and tailoring.

Exceptional Importance of the Combined Questions

Paired public and controlled records can preserve meaningful access while allowing a court to examine asserted sensitive placement. They also create a risk that sophisticated access mechanics will distract from the underlying legal questions: whether the content is exempt, whether public text can be separated, and whether judicial closure is justified.

The panel opinion addresses all three domains in one case. Clarification would help courts avoid four conflations. Law-enforcement purpose does not establish an exemption. One exemption does not prove another. A valid withholding does not resolve segregability. A FOIA determination does not automatically seal a judicial record.

The functional-category issue is similarly important. Agencies need not disclose a secret to justify withholding, and courts may accept coherent groups. Requesters must still be able to test what the groups do and how disclosure causes the protected harm. The line between safe abstraction and conclusory labeling deserves careful explanation.

Within this fictional exercise, those questions warrant en banc consideration if the panel does not narrow its reasoning. The petition does not assert that any real court has adopted the counterfactual opinion or encountered these synthetic facts.

Requested Rehearing Disposition

Open Grid asks the panel to grant rehearing, withdraw the full-affirmance opinion, and issue a revised decision that examines the disputed functional correlations and administrative fragments. The Court may continue to affirm authentic implementation relations, supported guidelines, and genuinely harm-linked 7(F) fields.

If the existing corrected worksheet proves complete after that examination, the Court can affirm segregability with a fuller explanation. If particular administrative portions remain unsupported, it can order release or a limited remand without reopening the search or exposing protected content.

For sealing, the Court should require passage-level findings or identify why a coherent passage group necessarily reveals the protected value and relation. It may preserve public counterparts, finite duration, session-specific grants, verification, and revocation during that review.

Alternatively, Open Grid asks the full court to rehear the combined questions and clarify the governing boundaries. The requested relief remains entirely inside the never-filed docket. It would create no event or remedy on the actual appeal.

Conclusion and Certificate

The panel correctly recognized that the corrected premise is stronger than the actual showing and repeatedly stated narrow legal rules. Rehearing is needed because several applications do not reveal the judicial step between the worksheet label and the affirmed segment.

Open Grid requests panel rehearing or rehearing en banc to preserve the distinctions among 7(E), 7(F), Vaughn specificity, segregability, and judicial access. It seeks precise analysis, not any real operational detail or broad disclosure order.

This petition contains ten logical pages and no controlled label or value. It is public within the isolated exercise. The filing is timely under the branch chronology and was served electronically on fictional DOE counsel on June 12, 2026.

Tamsin Roe certifies that the petition states every ground for rehearing on which Open Grid relies. It was never submitted to a real court or entered on the actual synthetic appellate docket. No outcome of this petition is assumed or disclosed here.

Tamsin Roe Fictional Counsel for Open Grid Archive